Mental Health (Mental Health Boards, Special Boards, Mental Health Review Tribunal) (Term of Office and Conditions of Service) Regulations, 2022

ARRANGEMENT OF SECTIONS

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IT is hereby notified that the Minister of Health and Child Care has, in terms of section 68, as read with sections 73 and 75 of the Mental Health Act [*Chapter 15:12*], made the following regulations:—

Title

1. These regulations may be cited as the Mental Health (Mental Health Boards, Special Boards, Mental Health Review Tribunal) (Term of Office and Conditions of Service) Regulations, 2022.

Interpretation

2. In these regulations—

"appointed member" in relation to a Board or a Tribunal, means a member appointed under sections 68, 73 or 75 of the Act;

"Board "means a Mental Hospital Board established in terms of section 68 of the Act, and any Special Board established in terms of section 73 of the Act;

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"Tribunal" means the Mental Health Review Tribunal established in terms of section 75 of the Act;

Disqualifications for appointment to Board or Tribunal

3. (1) Subject to the Act, a person shall not be qualified for appointment as a member of the Board or Tribunal, nor shall he or she hold office as an appointed member, if—

(a) he or she is not a citizen of Zimbabwe or ordinarily resident in Zimbabwe; or

(b) he or she is a member of two or more other statutory bodies; or

(c) he or she is a member of Parliament; or

(d) he or she is a member of a local authority or is in the full-time employment of a local authority; or

(e) he or she is a public auditor contracted by the Auditor-General to carry out certain audits in terms of section 69 of the Act, during the period of such contract;

(f) in terms of a law in force in any country—

(i) he or she has been adjudged or otherwise declared insolvent or bankrupt and has not been rehabilitated or discharged; or

(ii) he or she has made an assignment or composition with his or her creditors which has not been rescinded or set aside;

or

(*g*) within the period of five years immediately preceding his or her proposed appointment, he or she has been sentenced in any country to a term of imprisonment imposed without the option of a fine, whether or not any portion thereof has been suspended, and has not received a free pardon.

(2) For the purposes of subsection(1)(*b*)—

(a) a person who is appointed to a council, board or other authority which is a statutory body or which is

responsible for the administration of the affairs of a statutory body shall be regarded as a member of that statutory body;

(b) "statutory body" means—

(i) any Board established by the Constitution; or

(ii) any body corporate established directly by or under an Act for special purposes specified in that Act, the membership of which consists wholly or mainly of persons appointed by the President, a Vice-President, a Minister or any other statutory body or by a Board established by the Constitution.

Terms of office of members of Board or Tribunal

4. The term of office of an appointed member of the Board or Tribunal shall be such period, not exceeding four years, which is renewable for one additional term only.

Fees and allowances for Members of Board or Tribunal

5. (1)In this section—

"Minister" means the Minister responsible for the administration of the Public Entities and Corporate Governance Act [*Chapter 10:31*].

(2) Subject to subsection (3), a member of the Board or any committee shall be paid from the funds of the Board—

(a) such remuneration, if any, as the Minister may fix; and

(b) such allowance as the Minister may fix to meet any reasonable expenses incurred by him or her in connection with the business of the Board or Tribunal.

(3) No remuneration or allowance may be paid in terms of subsection (2) to a member of the Board, a committee or Tribunal who is in the full-time employment of an institution.

Vacation of office by members of Board or Tribunal

6. (1) An appointed member may resign his or her office at any time by giving the Minister and the Board or Tribunal thirty days'

notice of his or her intention to resign, or such other period of notice as he or she and the Minister may agree.

(2) An appointed member shall be deemed to have resigned his or her office and his or her office shall become vacant—

(a) if he or she becomes disqualified for appointment to the Board or Tribunal in terms of section 3(1)(a), (b), (c), (d), (e) or (f); or

(b) on the date he or she begins to serve a sentence of imprisonment, whether or not any portion was suspended, imposed without the option of a fine—

(i) in Zimbabwe, in respect of an offence; or

(ii) outside Zimbabwe, in respect of conduct which, if committed in Zimbabwe, would have constituted an offence.

Filling of vacancies on Board or Tribunal

7. (1) On the death of, or the vacation of office by, an appointed member, the Minister shall fill the vacancy within three months.

(2) The provisions of section 3 shall apply to the appointment of a member to fill a vacancy on a Board or Tribunal.

Procedure of meetings of Board

8. (1) Subject to subsection (2), the Board shall meet at such dates, times and places as may be fixed by the Chairperson:

Provided that the Board shall meet at least once in every three months.

(2) The Chairperson—

(a) may convene a special meeting of the Board at any time; and

(b) shall convene a special meeting of the Board on the written request of not fewer than two members, which meeting shall be convened for a date not sooner than seven days and not later than thirty days after the Chairperson's receipt of the request.

(3) Written notice of a special meeting convened in terms of subsection (2) shall be sent to each member not later than forty-eight hours before the meeting and shall specify the business for which the meeting has been convened:

Provided that a failure by a member to receive such a notice, or an inadvertent failure to send such a notice to a member, shall not invalidate the meeting.

(4) No business shall be discussed at a special meeting convened in terms of subsection (2) other than—

(a) such business as may be determined by the Chairperson, where he or she convened the meeting in terms of subsection (2)(a); or

(b) the business specified in the request for the meeting, where the Chairperson convened the meeting in terms of subsection (2)(b).

(5) The Chairperson or, in his or her absence, member designated by him or her, shall preside at all meetings of the Board.

(6) At any meeting of the Board, a majority of the members of the Board shall form a quorum.

(7) The Board will endeavour to make decisions by consensus among the members present at a meeting of the Board at which a quorum is present, failing which anything authorised or required to be done by the Board shall be decided by a majority vote of the members at the meeting.

(8) At all meetings of the Board each member present shall have one vote on each question before the Board:

Provided that, in the event of an equality of votes, the Chairperson or person presiding at the meeting shall have a casting vote in addition to his or her deliberative vote.

(9) With the approval of the Board, the Chairperson may invite any person to attend a meeting of the Board, where the Chairperson considers that the person has special knowledge or experience in any matter to be considered at that meeting.

(10) A person invited to attend a meeting of the Board in terms of subsection (9) may take part in the meeting as if he or she

were a member of the Board, but he or she shall not have a vote on any question before the meeting.

(11) Any proposal circulated among all members of the Board and agreed to in writing by a majority of them shall have the same effect as a resolution passed at a duly constituted meeting of the members and shall be incorporated into the minutes of the next succeeding meeting of the Board:

Provided that, if a member requires that such a proposal be placed before a meeting of the Board, this subsection shall not apply to the proposal.

(12) Except as otherwise provided in this section, the procedure for the convening and conduct of meetings of the Board shall be as fixed from time to time by the Board.

Committees of Board

9. (1) For the better exercise of its functions, the Board may establish one or more committees in which the Board may vest such of its functions as it considers appropriate.

(2) The vesting of a function in a committee in terms of subsection (1)—

(a) may be made absolutely or subject to conditions and may be amended or withdrawn at any time; and

(b) shall not divest the Board of that function;

and the Board may amend or rescind any decision of the committee in the exercise of that function.

(3) On the establishment of a committee under subsection (1) the Board—

(a) shall appoint at least one of its members as a member of the committee, and that member or one of those members, as the case may be, shall be chairperson of the committee; and

(b) may appoint as members of the committee persons who are not members of the Board and may fix the terms and conditions of their appointment.

(4) Meetings of a committee may be convened at any time and at any place by the Chairperson of the Board or of the committee concerned.

(5) If the chairperson of a committee is absent from a meeting of the committee, the members present may elect one of their number to preside at that meeting as chairperson.

(6) A majority of members of a committee shall form a quorum at any meeting of a committee.

(7) Anything authorised to or required to be done by a committee may be decided by a majority vote at a meeting of the committee at which a quorum is present.

(8) At all meetings of a committee each member present shall have one vote on each question before the committee:

Provided that, in the event of an equality of votes, the chairperson or person presiding at the meeting shall have a casting vote in addition to his or her deliberative vote.

(9) Subject to this section, the procedure to be followed at any meeting of a committee shall be as fixed by the Board.

Minutes of proceedings

10. (1) The Board shall cause minutes to be taken at its meetings and the meetings of its committees and enter them in books kept for the purpose.

(2) Any minutes referred to in subsection (1) which purport to be signed by the person presiding at the meeting to which the minutes relate or by the person presiding at the next following meeting of the Board or the committee concerned, as the case may be, shall be accepted for all purposes as *prima facie* evidence of the proceedings and decisions taken at the meeting concerned.

(3) The Board and any committee of the Board shall cause copies of all minutes that have been signed as provided in subsection (2) to be sent to the Minister for his or her information.

Validity of decisions and acts of Board

11. (1) No decision or act of the Board or act done under the authority of the Board shall be invalid solely because there were one

or more vacancies on the Board when the decision was taken or the act was done or authorised.

(2) If any decision or other act of the Board is rendered invalid through a procedural irregularity, the Board may at a duly convened meeting ratify the decision or act, and any decision or act so ratified shall be valid in all respects with effect from the date of its ratification.

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